CALIFORNIA ASSOCIATION OF REALTORS®

REAL ESTATE TRANSFER DISCLOSURE STATEMENT
(CALIFORNIA CIVIL CODE §1102, ET SEQ.)
(C.A.R. Form TDS, Revised 6/24)

☐ This property is a duplex, triplex or fourplex. A TDS is required for all units. This TDS is for ALL units (or ☐ only unit(s) _____).

THIS DISCLOSURE STATEMENT CONCERNS THE REAL PROPERTY SITUATED IN THE CITY OF Oakland, **COUNTY OF** Alameda, **STATE OF CALIFORNIA, DESCRIBED AS** 1731 Mountain Boulevard.

THIS STATEMENT IS A DISCLOSURE OF THE CONDITION OF THE ABOVE DESCRIBED PROPERTY IN COMPLIANCE WITH § 1102 OF THE CIVIL CODE AS OF (DATE) 03/24/2026. **IT IS NOT A WARRANTY OF ANY KIND BY THE SELLER(S) OR ANY AGENT(S) REPRESENTING ANY PRINCIPAL(S) IN THIS TRANSACTION, AND IS NOT A SUBSTITUTE FOR ANY INSPECTIONS OR WARRANTIES THE PRINCIPAL(S) MAY WISH TO OBTAIN.**

I. COORDINATION WITH OTHER DISCLOSURE FORMS

This Real Estate Transfer Disclosure Statement is made pursuant to § 1102 of the Civil Code. Other statutes require disclosures, depending upon the details of the particular real estate transaction (for example: special study zone and purchase-money liens on residential property).

Substituted Disclosures: The following disclosures and other disclosures required by law, including the Natural Hazard Disclosure Report/Statement that may include airport annoyances, earthquake, fire, flood, or special assessment information, have or will be made in connection with this real estate transfer, and are intended to satisfy the disclosure obligations on this form, where the subject matter is the same:

☒ Inspection reports completed pursuant to the contract of sale or receipt for deposit.
☒ Additional inspection reports or disclosures: See overflow paragraph 1

☐ *No substituted disclosures for this transfer.*

II. SELLER'S INFORMATION

The Seller discloses the following information with the knowledge that even though this is not a warranty, prospective Buyers may rely on this information in deciding whether and on what terms to purchase the subject property. Seller hereby authorizes any agent(s) representing any principal(s) in this transaction to provide a copy of this statement to any person or entity in connection with any actual or anticipated sale of the property.

THE FOLLOWING ARE REPRESENTATIONS MADE BY THE SELLER(S) AND ARE NOT THE REPRESENTATIONS OF THE AGENT(S), IF ANY. THIS INFORMATION IS A DISCLOSURE AND IS NOT INTENDED TO BE PART OF ANY CONTRACT BETWEEN THE BUYER AND SELLER.

Seller ☐ is ☒ is not occupying the property.

A. The subject property has the items checked below:*

☒ Range
☒ Oven
☐ Microwave
☒ Dishwasher
☐ Trash Compactor
Initial KP ☒ Garbage Disposal
☒ Washer/Dryer Hookups
☒ Rain Gutters
Initial SMP ☒ Burglar Alarms
☒ Carbon Monoxide Device(s)
☒ Smoke Detector(s)
☐ Fire Alarm
☐ TV Antenna
☐ Satellite Dish
☐ Intercom
☒ Central Heating
☐ Central Air Conditioning
☐ Evaporator Cooler(s)
☐ Wall/Window Air Conditioning
☒ Sprinklers

☒ Public Sewer System
☐ Septic Tank
☐ Sump Pump
☐ Water Softener
☒ Patio/Decking
☐ Built-in Barbecue
☐ Gazebo
☐ Security Gate(s)
☐ Garage:
☐ Attached ☐ Not Attached
☐ Carport
☐ Automatic Garage Door Opener(s)
☐ Number Remote Controls ____
☐ Sauna
☐ Hot Tub/Spa:
☐ Locking Safety Cover
☐ Pool:
☐ Child Resistant Barrier
☐ Pool/Spa Heater:
☐ Gas ☐ Solar ☐ Electric

☒ Water Heater:
☒ Gas ☐ Solar ☐ Electric
☒ Water Supply:
☒ City ☐ Well
☐ Private Utility or
Other_____
☒ Gas Supply:
☒ Utility ☐ Bottled (Tank)
☒ Window Screens
☐ Window Security Bars
☐ Quick Release Mechanism on Bedroom Windows
☐ Water-Conserving Plumbing Fixtures

Exhaust Fan(s) in Overflow 2 220 Volt Wiring in The main electrical panel and dryer Fireplace(s) in Living room
Gas Starter OF 3 Roof(s): Type: Composition Age: 4 years (approx.)
Other: Solar panels and battery backup, shed, washer/dryer, refrigerator (Appliances 11 years old, not warranted), older brick fireplace in backyard (may need repairs)

Are there, to the best of your (Seller's) knowledge, any of the above that are not in operating condition? ☒ Yes/☐ No. If yes, then describe. (Attach additional sheets if necessary): Burglar Alarms: Burglar alarm needs to be activated. Sensors need to inspected and/or updated to ensure working condition.

(*see note on page 2)

© 2024, California Association of REALTORS®, Inc. .

Buyer's Initials _____/_____ Seller's Initials Initial KP / Initial SMP

Alex Tse | Compass | Generated 03/24/2026 EQUAL HOUSING OPPORTUNITY

9ffa37db-816e-40a2-a6b8-1503854fae1b

Property Address: *1731 Mountain Boulevard, Oakland, CA 94611* Date: *03/24/2026*

B. Are you (Seller) aware of any significant defects/malfunctions in any of the following? ☒ Yes/☐ No. If yes, check appropriate space(s) below.

☒ Interior Walls ☐ Ceilings ☐ Floors ☒ Exterior Walls ☐ Insulation ☐ Roof(s) ☒ Windows ☐ Doors ☐ Foundation ☐ Slab(s) ☐ Driveways ☐ Sidewalks ☒ Walls/Fences ☒ Electrical Systems ☐ Plumbing/Sewers/Septics ☒ Other Structural Components (Describe: *Other Interior Structural Components: See DB Standard Home Inspection dated 3/13/2026 item 7.5 Loose water heater straps*)

If any of the above is checked, explain. (Attach additional sheets if necessary.): *See overflow paragraph 4*

*Installation of a listed appliance, device, or amenity is not a precondition of sale or transfer of the dwelling. The carbon monoxide device, garage door opener, or child-resistant pool barrier may not be in compliance with the safety standards relating to, respectively, carbon monoxide device standards of Chapter 8 (commencing with § 13260) of Part 2 of Division 12 of, automatic reversing device standards of Chapter 12.5 (commencing with § 19890) of Part 3 of Division 13 of, or the pool safety standards of Article 2.5 (commencing with § 115920) of Chapter 5 of Part 10 of Division 104 of, the Health and Safety Code. Window security bars may not have quick-release mechanisms in compliance with the 1995 edition of the California Building Standards Code. § 1101.4 of the Civil Code requires all single-family residences built on or before January 1, 1994, to be equipped with water-conserving plumbing fixtures after January 1, 2017. Additionally, on and after January 1, 2014, a single-family residence built on or before January 1, 1994, that is altered or improved is required to be equipped with water-conserving plumbing fixtures as a condition of final approval. Fixtures in this dwelling may not comply with § 1101.4 of the Civil Code.

C. Are you (Seller) aware of any of the following:

1. Substances, materials, or products which may be an environmental hazard such as, but not limited to, asbestos, formaldehyde, radon gas, lead-based paint, mold, fuel or chemical storage tanks, and contaminated soil or water on the subject property ..... ☐ Yes ☒ No
2. Features of the property shared in common with adjoining landowners, such as walls, fences, and driveways, whose use or responsibility for maintenance may have an effect on the subject property ..... ☒ Yes ☐ No
3. Any encroachments, easements or similar matters that may affect your interest in the subject property ..... ☒ Yes ☐ No
4. Room additions, structural modifications, or other alterations or repairs made without necessary permits ..... ☒ Yes ☐ No
5. Room additions, structural modifications, or other alterations or repairs not in compliance with building codes ..... ☒ Yes ☐ No

(**Note to C4 and C5:** If transferor acquired the property within 18 months of accepting an offer to sell it, transferor shall make additional disclosures regarding the room additions, structural modifications, or other alterations or repairs on a Seller Property Questionnaire (C.A.R. Form SPQ).)

6. Fill (compacted or otherwise) on the property or any portion thereof ..... ☐ Yes ☒ No
7. Any settling from any cause, or slippage, sliding, or other soil problems ..... ☐ Yes ☒ No
8. Flooding, drainage or grading problems ..... ☒ Yes ☐ No
9. Major damage to the property or any of the structures from fire, earthquake, floods, or landslides ..... ☐ Yes ☒ No
10. Any zoning violations, nonconforming uses, violations of "setback" requirements ..... ☒ Yes ☐ No
11. Neighborhood noise problems or other nuisances ..... ☒ Yes ☐ No
12. CC&R's or other deed restrictions or obligations ..... ☐ Yes ☒ No
13. Homeowners' Association which has any authority over the subject property ..... ☐ Yes ☒ No
14. Any "common area" (facilities such as pools, tennis courts, walkways, or other areas co-owned in undivided interest with others) ..... ☐ Yes ☒ No
15. Any notices of abatement or citations against the property ..... ☐ Yes ☒ No
16. Any lawsuits by or against the Seller threatening to or affecting this real property, claims for damages by the Seller pursuant to § 910 or 914 threatening to or affecting this real property, claims for breach of warranty pursuant to § 900 threatening to or affecting this real property, or claims for breach of an enhanced protection agreement pursuant to § 903 threatening to or affecting this real property, including any lawsuits or claims for damages pursuant to § 910 or 914 alleging a defect or deficiency in this real property or "common areas" (facilities such as pools, tennis courts, walkways, or other areas co-owned in undivided interest with others) ..... ☐ Yes ☒ No

If the answer to any of these is yes, explain. (Attach additional sheets if necessary.): *See overflow paragraph 5*

D. 1. The Seller certifies that the property, as of the close of escrow, will be in compliance with § 13113.8 of the Health and Safety Code by having operable smoke detector(s) which are approved, listed, and installed in accordance with the State Fire Marshal's regulations and applicable local standards.

2. The Seller certifies that the property, as of the close of escrow, will be in compliance with § 19211 of the Health and Safety Code by having the water heater tank(s) braced, anchored, or strapped in place in accordance with applicable law.

Seller certifies that the information herein is true and correct to the best of the Seller's knowledge as of the date signed by the Seller.

Signed by: 7EEB7B3B666841D...

Seller *Kyle W Peacock* Date 3/24/2026

Signed by: 7F8CFDBC33E949F...

Seller *Suzanne M Peacock* Date 3/25/2026

Property Address: 1731 Mountain Boulevard, Oakland, CA 94611 Date: 03/24/2026

III. AGENT'S INSPECTION DISCLOSURE

(To be completed only if the Seller is represented by an agent in this transaction.)

THE UNDERSIGNED, BASED ON THE ABOVE INQUIRY OF THE SELLER(S) AS TO THE CONDITION OF THE PROPERTY AND BASED ON A REASONABLY COMPETENT AND DILIGENT VISUAL INSPECTION OF THE ACCESSIBLE AREAS OF THE PROPERTY IN CONJUNCTION WITH THAT INQUIRY, STATES THE FOLLOWING:

☒ See attached Agent Visual Inspection Disclosure (AVID Form)

☐ Agent notes no items for disclosure.

☐ Agent notes the following items: _____

Agent (Broker Representing Seller) DocuSigned by: Compass (Please Print)

By Alex Tse Alex Tse Date 3/24/2026

F160 (Associate Licensee or Broker Signature)

IV. AGENT'S INSPECTION DISCLOSURE

(To be completed only if the agent who has obtained the offer is other than the agent above.)

THE UNDERSIGNED, BASED ON A REASONABLY COMPETENT AND DILIGENT VISUAL INSPECTION OF THE ACCESSIBLE AREAS OF THE PROPERTY, STATES THE FOLLOWING:

☐ See attached Agent Visual Inspection Disclosure (AVID Form)

☐ Agent notes no items for disclosure.

☐ Agent notes the following items: _____

Agent (Broker Obtaining the Offer) _____ (Please Print)

By _____ Date _____

(Associate Licensee or Broker Signature)

V. BUYER(S) AND SELLER(S) MAY WISH TO OBTAIN PROFESSIONAL ADVICE AND/OR INSPECTIONS OF THE PROPERTY AND TO PROVIDE FOR APPROPRIATE PROVISIONS IN A CONTRACT BETWEEN BUYER AND SELLER(S) WITH RESPECT TO ANY ADVICE/INSPECTIONS/DEFECTS.

I/WE ACKNOWLEDGE RECEIPT OF A COPY OF THIS STATEMENT.

Seller Signed by: 7EEB7B3B666841D... Kyle W Peacock Date 3/24/2026

Seller Signed by: Suzanne M Peacock 7F8CFDBC33E949F... Suzanne M Peacock Date 3/25/2026

Buyer _____ Date _____

Buyer _____ Date _____

Agent (Broker Representing Seller) DocuSigned by: Compass (Please Print)

By Alex Tse Alex Tse Date 3/24/2026

F160 (Associate Licensee or Broker Signature)

Agent (Broker Obtaining the Offer) _____ (Please Print)

By _____ Date _____

(Associate Licensee or Broker Signature)

§ 1102.3 OF THE CIVIL CODE PROVIDES A BUYER WITH THE RIGHT TO RESCIND A PURCHASE CONTRACT FOR AT LEAST THREE DAYS AFTER THE DELIVERY OF THIS DISCLOSURE IF DELIVERY OCCURS AFTER THE SIGNING OF AN OFFER TO PURCHASE. IF YOU WISH TO RESCIND THE CONTRACT, YOU MUST ACT WITHIN THE PRESCRIBED PERIOD.

A REAL ESTATE BROKER IS QUALIFIED TO ADVISE ON REAL ESTATE. IF YOU DESIRE LEGAL ADVICE, CONSULT YOUR ATTORNEY.

© 2024, California Association of REALTORS®, Inc. United States copyright law (Title 17 U.S. Code) forbids the unauthorized distribution, display and reproduction of this form, or any portion thereof, by photocopy machine or any other means, including facsimile or computerized formats. THIS FORM HAS BEEN APPROVED BY THE CALIFORNIA ASSOCIATION OF REALTORS®. NO REPRESENTATION IS MADE AS TO THE LEGAL VALIDITY OR ACCURACY OF ANY PROVISION IN ANY SPECIFIC TRANSACTION. A REAL ESTATE BROKER IS THE PERSON QUALIFIED TO ADVISE ON REAL ESTATE TRANSACTIONS. IF YOU DESIRE LEGAL OR TAX ADVICE, CONSULT AN APPROPRIATE PROFESSIONAL. This form is made available to real estate professionals through an agreement with or purchase from the California Association of REALTORS®.

Published and Distributed by: REAL ESTATE BUSINESS SERVICES, LLC. *a subsidiary of the California Association of REALTORS®*

CALIFORNIA ASSOCIATION OF REALTORS®

TEXT OVERFLOW ADDENDUM No. 1

(C.A.R. Form TOA, Revised 6/23)

This addendum is given in connection with the property known as 1731 Mountain Boulevard, Oakland, CA 94611 ("Property"), in which _____ is referred to as ("Buyer") and Kyle W Peacock, Suzanne M Peacock is referred to as ("Seller").

[TDS] Real Estate Transfer Disclosure Statement

1) I. Additional Inspection Reports or Disclosures:

See DB Standard Home Inspection dated 3/13/2026, Specialty Roofing Inspection dated 3/16/2026, Brothers Pest Inspection dated 3/20/2026, Whips Chimney Inspection dated 3/19/2026, Chicago Title Preliminary Title Report January 2026, Disclosure Source Hazard Report March 2026, CAR Form SPQ - Seller Property Questionnaire dated 3/24/2026, Jose's Construction 3/10/2026, Grand Flooring 2/20/2026, Victor Garden Service 2/13/2026, Perfect Coating Painting March 2026, Historical Documents

2) II.A. Exhaust Fans:

In the kitchen above the stove, baths, and laundry room

3) II.A. Gas Starter:

Remote control for living room fire place

4) II.B. Explanation of Defects:

Exterior Walls: Exterior walls are stucco. Due to natural expansion and contraction those walls are susceptible to cracks.

Walls/Fences: Fences are aging and need to be inspected.

Interior Walls: Some interior walls are lath and plaster. Due to natural expansion and contraction those walls are susceptible to cracks.

Windows: See DB Standard Home Inspection dated 3/13/2026 item 9.5

Electrical Systems: See DB Standard Home Inspection dated 3/13/2026 item 6.4

5) II.C. :

C. 2: Fences are shared with neighbors, one fence is shared with the school.

C. 3: See title report for easement, Buyer is advised to read the full document for easement restrictions. The easement is unplottable, Buyer would need to have a survey completed to find the exact location.

C. 4: Seller is aware of improvements made to the property ; however, Seller does not have records confirming whether all permits were obtained and/or finaled. Some improvements may have been completed by prior owners. Seller makes no representations regarding permit status. Buyer is advised to investigate and verify permit history and approval status with the appropriate local building department and rely on Buyer's own investigation

(continued on overflow page 2)

The foregoing terms and conditions are hereby incorporated in and made a part of the paragraph(s) referred to in the document to which this TOA is attached. The undersigned acknowledge receipt of a copy of this TOA.

Buyer _____ Date _____

Buyer _____ Date _____

Signed by: 7EEB7B3B666841D...

Seller _____ Kyle W Peacock Date 3/24/2026

Signed by: 7F8CFDBC33E949F...

Seller _____ Suzanne M Peacock Date 3/25/2026

© 2023, California Association of REALTORS®, Inc. United States copyright law (Title 17 U.S. Code) forbids the unauthorized distribution, display and reproduction of this form, or any portion thereof, by photocopy machine or any other means, including facsimile or computerized formats. THIS FORM HAS BEEN APPROVED BY THE CALIFORNIA ASSOCIATION OF REALTORS®. NO REPRESENTATION IS MADE AS TO THE LEGAL VALIDITY OR ACCURACY OF ANY PROVISION IN ANY SPECIFIC TRANSACTION. A REAL ESTATE BROKER IS THE PERSON QUALIFIED TO ADVISE ON REAL ESTATE TRANSACTIONS. IF YOU DESIRE LEGAL OR TAX ADVICE, CONSULT AN APPROPRIATE PROFESSIONAL. This form is made available to real estate professionals through an agreement with or purchase from the California Association of REALTORS®. It is not intended to identify the user as a REALTOR®. REALTOR® is a registered collective membership mark which may be used only by members of the NATIONAL ASSOCIATION OF REALTORS® who subscribe to its Code of Ethics.

Published and Distributed by:
REAL ESTATE BUSINESS SERVICES, LLC.
a subsidiary of the CALIFORNIA ASSOCIATION OF REALTORS®
525 South Virgil Avenue, Los Angeles, California 90020

EQUAL HOUSING OPPORTUNITY

Docusign Envelope ID: 07D426A8-D8D2-43AA-A1A2-8909B8E4A602

CALIFORNIA ASSOCIATION OF REALTORS®

TEXT OVERFLOW ADDENDUM No. 2

(C.A.R. Form TOA, Revised 6/23)

This addendum is given in connection with the property known as *1731 Mountain Boulevard, Oakland, CA 94611* ("Property"), in which _____ is referred to as ("Buyer") and *Kyle W Peacock, Suzanne M Peacock* is referred to as ("Seller").

[TDS] Real Estate Transfer Disclosure Statement
5) II.C. (continued):
C. 5: Seller is unsure if bathroom/closet addition meets code.
C. 8: Minor puddling on North side of house during heavy rains. Street drain can get clogged with leaves - needs to be cleared during heavy rains. Crawl space dirt can get wet during winter.
C. 10: Shed may be too close to fence. Buyer to verify.
C. 11: Next to a school. Close to freeway.
C: Please see CAR Form SPQ- Seller Property Questionnaire for additional disclosures

Owner must register with Oakland Rent Adjustment Program even if property is owner occupied. Buyer to verify requirements.

The foregoing terms and conditions are hereby incorporated in and made a part of the paragraph(s) referred to in the document to which this TOA is attached. The undersigned acknowledge receipt of a copy of this TOA.

Buyer _____ Date _____

Buyer _____ Date _____

Seller Signed by: 7EEB7B3B666841D... *Kyle W Peacock* Date 3/24/2026

Seller Signed by: 7F8CFDBC33E949F... *Suzanne M Peacock* Date 3/25/2026

© 2023, California Association of REALTORS®, Inc. United States copyright law (Title 17 U.S. Code) forbids the unauthorized distribution, display and reproduction of this form, or any portion thereof, by photocopy machine or any other means, including facsimile or computerized formats. THIS FORM HAS BEEN APPROVED BY THE CALIFORNIA ASSOCIATION OF REALTORS®. NO REPRESENTATION IS MADE AS TO THE LEGAL VALIDITY OR ACCURACY OF ANY PROVISION IN ANY SPECIFIC TRANSACTION. A REAL ESTATE BROKER IS THE PERSON QUALIFIED TO ADVISE ON REAL ESTATE TRANSACTIONS. IF YOU DESIRE LEGAL OR TAX ADVICE, CONSULT AN APPROPRIATE PROFESSIONAL. This form is made available to real estate professionals through an agreement with or purchase from the California Association of REALTORS®. It is not intended to identify the user as a REALTOR®. REALTOR® is a registered collective membership mark which may be used only by members of the NATIONAL ASSOCIATION OF REALTORS® who subscribe to its Code of Ethics.

Published and Distributed by:
REAL ESTATE BUSINESS SERVICES, LLC.
a subsidiary of the CALIFORNIA ASSOCIATION OF REALTORS®
525 South Virgil Avenue, Los Angeles, California 90020

EQUAL HOUSING OPPORTUNITY

Alex Tse | Compass | Generated by Glide

9ffa37db-816e-40a2-a6b8-1503854fae1b